

26STCV06856 26STCV06856

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-11

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Case Number: 26STCV06856 Hearing Date: August 11, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:22 PM on August 10, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 10, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs

allege that she was walking in a parking lot on a defective, cracked, broken and/or deteriorated entrance and/or exit gate barrier and/or similar object malfunctioned and struck Plaintiff

Defendants

The LSMD Fund LA LLC and The RMR Group, LLC demurs to the Complaint.

TENTATIVE RULING

Defendants

The LSMD Fund LA LLC and The RMR Group, LLC's demurrer to the Complaint is OVERRULED as to the first and second causes of action.

Defendants are to answer
the Complaint within 10 days.

ANALYSIS

Meet and Confer

The

Declaration of Shannon Reid reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Discussion

As

an initial matter, Defendants object to Plaintiff having failed to serve the opposition until a day late, although it was timely filed. If Defendants need more time to prepare a reply, the Court will continue the hearing. Otherwise, the Court will proceed to address the merits of the demurrer.

Defendant

The LSMD Fund LA LLC and The RMR Group, LLC demurs to the Complaint as follows:

1. First

Cause of Action (General Negligence).

Defendants

argue that this cause of action is duplicative of the premises liability cause of action. Defendants argue that Plaintiffs are improperly attempting to recover multiple times for the same alleged negligence.

This

argument is not persuasive. Ownership of the premises is not an element of general negligence. Eventually, this case may be tried on a single negligence theory once discovery has closed, but at this point "[s]uperfluity does not vitiate." (Civil Code § 3537.) Obviously, Plaintiff will not sneak in a double recovery, as the Court will only enter judgment permitting a single recovery.

Defendants

argue that the Complaint is silent as to how each named defendant was negligent in bringing about Plaintiff's alleged injuries. Given that Plaintiffs' allegations as to Moving Defendants are unclear, Defendants are left to guess and speculate as to what they allegedly did wrong.

A complaint for damages for negligent injury to person or property must allege: (1) defendant's legal duty of care toward plaintiff; (2) defendant's breach of duty, i.e., the negligent act or omission; (3) injury to plaintiff as a result of the breach, i.e., proximate or legal cause; and (4) damage to plaintiff. (Citation omitted.) No strict requirements exist for the form of such allegations. The legal conclusion that a "duty" exists is not necessary. Here, the duty to exercise reasonable care can be inferred from the assertion of the fact that defendant owned and managed the property. (Citation omitted.) The negligence element may be generally pleaded; the breach of duty of care may be alleged by stating the act was negligently done. (Citations omitted.) Here, the complaint alleged defendant's negligent management and maintenance of his property. Proximate cause, as here, may also be simply set forth. (Citation omitted.)

(Pultz v. Holgersen (1986) 184 Cal.App.3d 1110, 1116-17.)

Ordinarily,

negligence may be pled in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty. (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795.)

Here, the allegation that each Defendant had control of the premises and owed a duty to maintain it in safe condition, but were negligent in doing so in a manner which caused Plaintiff harm is sufficient to put all Defendants on notice of the issues to be met. Defendants may conduct discovery to uncover evidence which presents a defense

to the alleged liability. Plaintiff is entitled to conduct discovery as to which entity owed a duty to keep the premises in good condition.

The demurrer to the first cause of action is OVERRULED.

2. Second

Cause of Action (Premises Liability).

Defendants

argue that this cause of action is duplicative of the negligence cause of action. This argument is not persuasive as possession of the premises and right to control and manage the premises is the basis of liability—which is not an element of general negligence:

‘The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (Citations omitted.) Premises liability “is grounded in the possession of the premises and the attendant right to control and manage the premises”; accordingly, “mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” (Citations omitted.) But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. (Citations omitted.) In determining whether a premises owner owes a duty to persons on its property, we apply the Rowland factors. (Citations omitted.) Indeed, Rowland itself involved premises liability. (Citation omitted.)

We have never held that the physical or spatial boundaries of a property define the scope of a landowner’s liability. The Courts of Appeal have repeatedly concluded that “[a] landowner’s duty of care to avoid exposing others to a risk of injury is not limited to injuries that occur on premises owned or controlled by the landowner.” (Citations omitted.) “Rather, the duty of care encompasses a duty to avoid exposing persons to risks of injury that occur off site if the landowner’s property is maintained in such a manner as to expose persons to an unreasonable risk of injury offsite.” (Citations omitted.)

(Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158-59.)

As noted above, negligence may be
pled generally. Defendants may conduct discovery to ascertain whether Plaintiff
lacks evidence sufficient to impose premises liability upon Defendants. Plaintiff is entitled to conduct discovery as
to which entity owned and controlled the subject premises or otherwise had the
obligation to keep it in good condition.

The demurrer to the second cause of
action is OVERRULED.

Defendants are to answer the
Complaint within 10 days.